Department of Public Services Performance Appraisal Policy

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PSY 724

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Purpose

The Department of Public Services (DPS) establishes this policy to evaluate employees fairly, improve public services, and identify training and support needs. Performance expectations will connect individual responsibilities to agency goals and responsible use of public resources. Evaluations may inform recognition, development, and personnel decisions under applicable requirements. Employees will receive an explanation of these uses because administrative and developmental purposes can place competing demands on an appraisal system (Murphy et al., 2019).

Scope

This policy applies to administrative staff, field workers, policy analysts, and supervisors covered by DPS's general employee appraisal program. Employees governed by separate statutory systems will follow those requirements. HR and labor relations staff will determine applicable bargaining obligations and whether existing collective bargaining provisions affect implementation.

Evaluation Criteria

Written performance plans will identify assigned responsibilities, critical elements, and observable standards. Criteria will address job knowledge, quality and productivity, teamwork, public service effectiveness, and regulatory compliance. Supervisors will also be evaluated on coaching, workload management, accountability, and required whistleblower protections (5 C.F.R. § 430.206, 2026).

Measures must fit the position. Field workers may be evaluated on safe, timely service delivery. Analysts may be evaluated on research accuracy and useful recommendations. Administrative staff may be evaluated on processing accuracy, responsiveness, and coordination.

DPS proposes four summary levels for its approved program: Unacceptable, Fully Successful, Exceeds Fully Successful, and Outstanding. Unacceptable performance on any critical element requires an Unacceptable overall rating. Higher ratings require documented evidence distinguishing performance above established expectations. HR will publish the rating derivation method before implementation and apply current OPM distribution requirements where applicable (5 C.F.R. § 430.208, 2026).

Process and Frequency

The appraisal cycle runs from October 1 through September 30. Supervisors will provide written plans normally within 30 days of the cycle’s beginning or assignment to a covered position. Employees will participate in discussing expectations, measures, and necessary resources (5 C.F.R. § 430.206, 2026).

Quarterly check-ins will address accomplishments, concerns, and support needs, including a documented midpoint review. Changes to assignments or standards will be recorded and communicated promptly. Supervisors will consider documented equipment shortages, workload differences, and training limitations when interpreting results.

Employees may submit a self-assessment and supporting evidence before the annual evaluation. Participation gives employees a meaningful opportunity to explain their work and is associated with greater appraisal satisfaction (Cawley et al., 1998).

Annual reviews will consider the entire period and identify development actions, responsible parties, resources, and follow-up dates. Feedback will address specific work behaviors, and subsequent reviews will assess progress. This reflects the textbook's caution that providing feedback alone does not ensure improvement (Murphy et al., 2019).

HR will track completed plans and reviews, examine rating patterns, document corrections, maintain required records, and coordinate applicable federal reporting. Insufficient observation periods will be handled under the approved program.

Rater Responsibilities and Training

Immediate supervisors will gather evidence, provide feedback, and explain ratings. Reviewing officials will check supporting documentation and consistent application of standards. Peer or customer feedback may supplement the evaluation when respondents directly observe relevant work.

Before evaluating employees, supervisors must complete training on performance standards, documentation, accommodations, and feedback. Annual refreshers will address halo, recency, favoritism, and visibility bias, including differences between office and field assignments.

Training will include common performance examples, independent practice ratings, and discussion of differences. This provides a shared understanding of performance levels. Roch et al. (2012) found that frame-of-reference training improves rating accuracy. HR will investigate unexplained rating disparities and require corrective action when warranted.

Legal and Ethical Considerations

DPS will follow the Civil Service Reform Act framework, federal merit principles, and applicable appraisal regulations. Employees must receive fair treatment, with protection against favoritism, improper political influence, and whistleblower reprisal (U.S. Merit Systems Protection Board, n.d.).

Evaluations and resulting decisions must comply with Title VII and other applicable nondiscrimination protections. Section 501 of the Rehabilitation Act governs federal disability protections and incorporates ADA employment standards. Supervisors will coordinate accommodation requests with the designated office and apply job-related standards consistent with accommodation obligations (U.S. Equal Employment Opportunity Commission [EEOC], 2008).

Productivity expectations must support compliance with the Fair Labor Standards Act and federal pay rules. For covered employees, work the agency suffers or permits counts toward hours worked. Supervisors must prevent unrecorded work and ensure compensation under applicable requirements (5 C.F.R. § 551.401, 2026).

Ratings must reflect actual performance and applicable OPM procedures. Budget pressures cannot justify fabricated evidence. HR and counsel will review bargaining obligations, including conflicts between current regulations and existing agreements.

Employees and designated representatives will receive authorized access to performance files. Other access and disclosures must follow federal records and privacy requirements (5 C.F.R. § 293.402, 2026).

For covered performance-based actions under Part 432, HR must verify the required improvement opportunity, advance notice, response rights, and representation protections before proceeding (5 C.F.R. § 432.105, 2026).

Appeal and Review Process

Employees will receive their rating and supporting explanation. DPS permits written reconsideration requests within 15 calendar days. An official outside the original decision will review the evidence and ordinarily respond within 30 calendar days. Any informal rating correction must meet the applicable 60-day regulatory window.

HR will explain available procedures before employees choose a review route. Current regulations generally bar negotiated grievances challenging ratings of record, subject to protections for certain existing agreements. Counsel will determine whether those protections apply (5 C.F.R. § 430.208, 2026; U.S. Office of Personnel Management, 2026).

Employees retain applicable discrimination complaint and personnel-action appeal rights. Internal review does not extend external deadlines. Employees alleging discrimination generally must contact an agency EEO counselor within 45 days. Retaliation for exercising protected rights is prohibited (EEOC, n.d.).

References

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